

Court No. - 3

Case :- WRIT - C No. - 17453 of 2016

Petitioner :- Om Pal Singh

Respondent :- Chairman/Managing Director U.P.P.C.L. And 5 Ors.

Counsel for Petitioner :- Ram Raj Pandey, Dhruva Narayana

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Learned counsel for the petitioner contends that without providing any provisional bill, inviting objection thereto and opportunity of hearing a demand notice of Rs. 6,92,161/- was sent in the name of the petitioner, even though, the connection stands in the name of the father of the petitioner and the amount is being recovered from the petitioner illegally.

Sri Chandan Agarwal, learned counsel respondent nos. 1 to 4 prays for and is granted three days' time to seek instructions.

Put up this petition as fresh on 25th April, 2016.

Till then, no coercive action shall be taken against the petitioner pursuant to the impugned demand notice.

Order Date :- 20.4.2016

A. Pt. Singh

Court No. - 3

Case :- WRIT - C No. - 17453 of 2016

Petitioner :- Om Pal Singh

Respondent :- Chairman/Managing Director U.P.P.C.L. And 5 Ors.

Counsel for Petitioner :- Ram Raj Pandey, Dhruva Narayana

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Heard learned counsel for the petitioner, learned Standing Counsel for State respondents and Shri Chandan Agarwal, who has accepted notice on behalf of respondent nos. 1 to 4.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the recovery citation dated 01.12.2015 issued by respondent no. 6.

Shri Chandan Agarwal appearing for the respondent-corporation states that the provisional assessment notice has been issued to the petitioner. In support of the contention, he has produced before us a copy of the same, which is taken on record.

Learned counsel for the petitioner states that since the provisional assessment does not mention any date, as such, he could not submit his reply and in absence whereof, the respondent treated it to be final and issued recovery certificate. Learned counsel for the petitioner further states that the petitioner will submit objection to the provisional assessment within two weeks from today. Learned counsel appearing for the petitioner has also invited the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice, was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the provisional assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and, in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar & Ors. Vs. State of U.P. & Ors., 2008 (6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.6,92,161/-. The notice also does not specify the date for

hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition stands allowed.

The impugned recovery citation dated 01.12.2015 is hereby quashed. The final assessment order shall be made within six weeks after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar** (supra).

Order Date :- 25.4.2016

VKS